

Manandeep Singh Kukreja & Ors vs State Of Nct Of Delhi & Anr on 11 September, 2020

Author: Yogesh Khanna

Bench: Yogesh Khanna

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* IN THE HIGH COURT OF DELHI AT NEW DELHI

+ CRL.M.C. 1793/2020

MANANDEEP SINGH KUKREJA & ORS.

Through : Ms.Ankita Shah, Advocate
versus

STATE OF NCT OF DELHI & ANR.

Through : Mr.M.S.Oberoi, APP for
with SI Deepak Sharma
Bagh.

Mr.Ramakanth Gaur, Ms
Advocates for R2.

CORAM:

HON'BLE MR. JUSTICE YOGESH KHANNA

ORDER

% 11.09.2020

1. The hearing has been conducted through Video Conferencing.
2. Exemption allowed, subject to all just exceptions.
3. The application stands disposed of.
4. This petition is filed for quashing of the FIR No.262/2018 under Sections 406/498A/506/34 IPC registered at PS Punjabi Bagh, Delhi and the proceedings emanating therefrom.
5. It is submitted the marriage between petitioner No.1-husband and complainant/respondent No.2-wife was solemnised on 30.07.2016 in accordance with Hindu rites and ceremonies and they lived at 5/25b, Jangpura B, Delhi-14, though such marriage was never consummated and no issue was born from the wedlock and the parties are residing separately since 13.01.2018 because of disputes and differences between them.
6. A complaint bearing no.137/2018 was filed on 27.02.2018 before the CAW Cell, Punjabi Bagh, Delhi and on 31.01.2018 a complaint under Section 12 of DV Act bearing CC No.1026/2018 was filed, though now both such complaints are withdrawn.
7. The parties have now entered into a compromise and have settled all their disputes and

differences vide a MoU dated 14.02.2020 before the Mediation Centre, Tis Hazari Courts, Delhi annexed with petition and that they have since obtained divorce by mutual consent. The terms of settlement as set out in the MoU dated 14.02.2020 is adhered to by both the parties, though only Rs.15.00 lacs remains to be paid by the petitioners to respondent no.2 and the learned counsel for the petitioner submit the demand draft of the abovesaid amount is ready and shall be handed over to the learned counsel for the respondent no.2 or to respondent no.2 within a week from today though the photocopy of the same shall be handed over to the counsel for the respondent no.2 in the course of day. The learned counsel for the respondent no.2 on instructions submits he has no objection to the same. The undertaking of the learned counsel for the petitioner is accepted to this effect. The affidavit of respondent no.2 is also on record.

8. Considering the above settlement between the parties, there is no need to proceed further with the present FIR, hence, the petition is allowed. Consequently, FIR No.262/2018 under Sections 406/498A/506/34 IPC at police station Punjabi Bagh, Delhi and the proceedings emanating therefrom stands quashed. Pending application(s) if any, also stands disposed of. No order as to costs.

YOGESH KHANNA, J.

SEPTEMBER 11, 2020 DU